

LETTER OF ENGAGEMENT FOR MARKETING SERVICES

Butter First LLC and Barked Up Forestry Mulching

PLEASE NOTE: This document is not a long-term or multi-month lock-in contract. It is a simple letter of engagement between two companies. Either party may end this engagement at any time as described below. Its purpose is to confirm, in writing, the working relationship and services described here.

1. Parties

This Letter of Engagement (the "Agreement") is entered into as of the date of the last signature below, by and between:

- Butter First LLC, represented by Patrick Dinehart (the "Provider"), and
- Barked Up Forestry Mulching, represented by Josh Carter (the "Client").

Each may be referred to individually as a "Party" and together as the "Parties."

2. Services

The Provider agrees to perform the following digital marketing services on behalf of the Client:

- Search engine optimization (SEO) marketing
- Pay-per-click (PPC) management through Google Ads
- Facebook (Meta) advertising management
- Website hosting

The specific scope, strategy, and day-to-day activities within these services will be managed at the Provider's professional discretion, in regular communication with the Client. Any additional services beyond those listed above may be agreed to separately in writing, including by email.

3. Term and Termination

This engagement begins on the date of the last signature below and continues on a month-to-month basis. There is no minimum commitment of multiple months. Either Party may terminate this engagement at any time, for any reason, by providing written notice (email is acceptable) to the other Party. Upon termination, the Client is responsible only for fees owed for services performed through the effective date of termination.

4. Fees and Payment

The Client agrees to pay the Provider a monthly fee of \$750.00 (seven hundred fifty dollars) for the services described above, due on or before the 12th day of each month. Advertising spend paid to Google, Meta, or any other advertising platform is separate from the Provider's fee and is the responsibility of the Client, billed directly to the Client's own payment method on those platforms unless otherwise agreed in writing.

5. Client Responsibilities

The Client agrees to provide reasonable cooperation, including timely access to relevant accounts (such as website hosting, Google Business Profile, Google Ads, and Meta Business accounts), accurate business information, and timely responses to requests needed to perform the services.

6. No Guarantee of Results; Disclaimer

The Client acknowledges and agrees that digital marketing outcomes depend on many factors outside the Provider's control, including but not limited to search engine and advertising platform algorithms and policies, competitor activity, market conditions, seasonality, the Client's pricing and service quality, customer reviews, and the Client's own handling of leads and inquiries.

Accordingly, the Provider makes no guarantee, warranty, or promise of any specific result, including but not limited to search rankings, website traffic, lead volume, phone calls, conversion rates, revenue, profit, or growth of any kind. All services are provided on a best-effort, professional basis only.

7. Limitation of Liability

To the fullest extent permitted by law, the Client agrees that the Provider, including its owners, employees, and contractors, shall not be liable for any loss of revenue, loss of profit, loss of business, loss of leads, harm to reputation, or any indirect, incidental, special, or consequential damages of any kind arising out of or related to the services provided under this Agreement, even if advised of the possibility of such damages. This includes, without limitation, any effects of marketing campaigns, advertising content, search engine ranking changes, advertising account suspensions or policy actions by third-party platforms, website downtime or outages caused by third-party hosting infrastructure, or public response to any marketing materials.

In all cases, the Provider's total liability under this Agreement, if any, shall not exceed the total fees actually paid by the Client to the Provider during the one (1) month immediately preceding the event giving rise to the claim.

The Client agrees to release and hold harmless the Provider from any claims, damages, or expenses arising from the Client's business operations, the quality of the Client's services to its own customers, or the Client's handling of leads generated through the marketing services.

8. Independent Contractor

The Provider is an independent contractor. Nothing in this Agreement creates an employment relationship, partnership, joint venture, or agency relationship between the Parties.

9. Ownership and Access

Advertising accounts, business profiles, and website properties belonging to the Client remain the property of the Client. Work product created by the Provider specifically for the Client (such as ad copy and website content) becomes the property of the Client upon payment for the period in which it was created. The Provider may retain and reuse general knowledge, methods, and processes developed in the course of the work.

10. Entire Agreement; Governing Law

This Agreement contains the entire understanding between the Parties regarding the services described above and replaces any prior verbal or written discussions on the same subject. Any changes must be agreed in writing by both Parties. This Agreement shall be governed by the laws of the State of North Carolina, without regard to its conflict of law principles.

Signatures

By signing below, each Party confirms they have read, understood, and agreed to the terms of this Letter of Engagement.

PROVIDER – Butter First LLC

Signature

Name: Patrick Dinehart

Title: Owner, Butter First LLC

Date: _____

CLIENT – Barked Up Forestry Mulching

Signature

Name: Josh Carter

Title: Owner, Barked Up Forestry Mulching

Date: _____